

SPONSOR MEMORANDUM

Frontier Artificial Intelligence Officer Certification Act

ILLINOIS RESEARCH DRAFT v0.2

At a glance. Illinois already regulates only the largest frontier-AI developers. This amendment preserves that scope and adds one missing mechanism: named natural persons must inquire, sign, and answer for the developer's compliance.

PURPOSE AND CURRENT LAW

The Artificial Intelligence Safety Measures Act, codified at 430 ILCS 185, applies only to frontier models trained above 10^{26} operations by developers whose combined annual gross revenues exceed \$500 million. It already requires a frontier AI framework, deployment transparency reports, annual independent audits, critical-safety-incident reporting, whistleblower processes, and registration with IEMA-OHS.

THE NARROW GOVERNANCE GAP

The independent lead auditor signs the audit report, but no natural person controlling the developer must sign for the developer. The Act's principal civil penalties apply to the company. Its officers and directors receive internal whistleblower information, yet none has a personal statutory duty to inquire, attest, or respond.

PROPOSED AMENDMENT

Before or concurrently with deployment of a new or substantially modified covered model, the developer would file either:

1. a certification that, after reasonable inquiry, required transparency, assessment, evaluation, mitigation, and framework steps were completed and deployment materially complies with existing law; or
2. a truthful acknowledgment identifying material noncompliance and a remediation plan.

A similar signed management response would be due within 30 days after the annual independent audit. An acknowledgment would disclose noncompliance; it would not authorize deployment, establish compliance, or create a defense.

WHO SIGNS

The required natural persons would include:

- the developer's highest-ranking executive;
- the highest-ranking executive of an ultimate controlling affiliate;
- the most senior officer responsible for the frontier AI framework who can prevent a noncompliant deployment; and
- any other natural person with final material authority over deployment or the budgets, compute, infrastructure, risk policy, appointments, ownership, voting, trust, contractual, or governance rights that control it.

Substance controls over title. A vacancy, committee, unusual entity form, or divided authority cannot leave an empty chair. Technical expertise, system access, advice, analysis, or ministerial implementation alone does not make an engineer, employee, contractor, or adviser a signer.

PERSONAL DUTY AND ENFORCEMENT

Each signer must exercise due care to ensure a reasonable, documented inquiry and use meaningful measures within the signer's authority when material noncompliance is found. Supporting work may be delegated; the duty may not. Lack of actual knowledge does not excuse facts that a reasonable inquiry or properly maintained escalation system would have disclosed.

The Attorney General alone may enforce these duties. A signer is not liable merely because the company violated another provision. Liability requires proof of that person's own false statement, concealment, omitted filing, or failure to exercise due care in a duty within that person's authority.

Maximum individual civil penalties are \$250,000 for a first violation and \$1 million for a subsequent violation. An imposed penalty must be paid personally and cannot be reimbursed, indemnified, insured, or offset through compensation. Company penalties remain separate. The proposal creates no criminal offense and no private right of action.

PUBLIC OFFICER-SIGNATURE REGISTER

IEMA-OHS would maintain a searchable register identifying the developer, covered model, filing type, date, and every signer's name, title, capacity, and attestation. Protected technical and security information may remain redacted; the identities of the responsible natural persons may not.

LEGISLATIVE REQUEST

Transmit the research draft to the Illinois Legislative Reference Bureau for official amendatory drafting and review by relevant policy, enforcement, fiscal, and agency staff. The proposal does not alter the 10^{26} -compute threshold, the \$500 million revenue threshold, Illinois's technical standards, or the treatment of ordinary AI systems.

MATERIALS

Complete bill text and source materials:
github.com/llmaolaw/illinois-frontier-officer-certification